

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4492

By: Townley

AS INTRODUCED

An Act relating to state government; amending 47 O.S. 2021, Section 156.1, as last amended by Section 55, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2025, Section 156.1), which relates to use of state-owned or state-leased motor vehicles; permitting Corporation Commissioners, division heads, emergency responders, and field inspectors not stationed at central office to use a state-owned or state-leased vehicle; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 156.1, as last amended by Section 55, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2025, Section 156.1), is amended to read as follows:

Section 156.1. A. It shall be unlawful for any state official, officer or employee, except any essential employees approved by the Governor and those officers or employees authorized in subsection B of this section, to ride to or from the place of residence of the employee in a state-owned or state-leased automobile, truck, or pickup, except in the performance of the official duty of the employee, or to use or permit the use of any such automobile, truck,

1 ambulance, or pickup for other personal or private purposes. Any
2 person convicted of violating the provisions of this section shall
3 be guilty of a misdemeanor and shall be punished by a fine of not
4 more than One Hundred Dollars (\$100.00) or by imprisonment in the
5 county jail for a period to not exceed thirty (30) days, or by both
6 ~~said~~ such fine and imprisonment, and in addition thereto, shall be
7 discharged from state employment.

8 B. 1. Any state employee, other than the individuals provided
9 for in paragraph 2 of this subsection and any employee of the
10 Department of Public Safety who is a wrecker inspector or auditor of
11 the Wrecker Services Division as provided for in paragraph 3 of this
12 subsection, who receives emergency telephone calls regularly at the
13 residence of the employee when the employee is not on duty and is
14 regularly called upon to use a vehicle after normal work hours in
15 response to such emergency calls, may be permitted to use a vehicle
16 belonging to the state to provide transportation between the
17 residence of the employee and the assigned place of employment,
18 provided such distance does not exceed seventy-five (75) miles in
19 any round trip or is within the county where the assigned place of
20 employment is located. Provided further, an employee may be
21 permitted to use a state-owned or state-leased vehicle to provide
22 temporary transportation between a specific work location other than
23 the assigned place of employment and the residence of the employee,
24 if such use shall result in a monetary saving to the agency, and

1 such authorization shall not be subject to the distance or area
2 restrictions provided for in this paragraph. Authorization for
3 temporary use of a state-owned or state-leased vehicle for a
4 specific project shall be in writing stating the justification for
5 this use and the saving expected to result. Such authorization
6 shall be valid for not to exceed sixty (60) days. Any state entity
7 other than law enforcement that avails itself of this provision
8 shall keep a monthly record of all participating employees, the
9 number of emergency calls received and the number of times that a
10 state vehicle was used in the performance of such emergency calls.

11 2. Any employee of the Department of Public Safety, Oklahoma
12 Department of Corrections, Office of the Attorney General, Oklahoma
13 State Bureau of Narcotics and Dangerous Drugs Control, Oklahoma
14 State Bureau of Investigation, Alcoholic Beverage Laws Enforcement
15 Commission, Oklahoma Horse Racing Commission, ~~Oklahoma~~ Department of
16 Agriculture, Food, and Forestry, Office of the Inspector General
17 within the Department of Human Services or Office of the State Fire
18 Marshal, who is a law enforcement officer or criminalist, ~~Public~~
19 ~~Information officer~~ public information officer, ~~Special Investigator~~
20 special investigator or ~~Assistant Director~~ assistant director of the
21 Oklahoma State Bureau of Investigation, the Executive Director of
22 CLEET, CLEET-certified ~~Investigator~~ investigator for a state board
23 or any employee of a district attorney who is a law enforcement
24 officer, may be permitted to use a state-owned or state-leased

1 vehicle to provide transportation between the residence of the
2 employee and the assigned place of employment and between the
3 residence and any location other than the assigned place of
4 employment to which the employee travels in the performance of the
5 official duty of the employee.

6 3. Any employee of the Department of Public Safety who is a
7 wrecker inspector or auditor of the Wrecker Services Division, or a
8 noncommissioned pilot may be permitted, as determined by the
9 Commissioner, to use a state-owned or state-leased vehicle to
10 provide transportation between the residence of the employee and the
11 assigned place of employment and between the residence and any
12 location other than the assigned place of employment to which the
13 employee travels in the performance of the official duty of the
14 employee.

15 4. The Director, department heads and other essential employees
16 of the Department of Wildlife Conservation, as authorized by the
17 Wildlife Conservation Commission, may be permitted to use a state-
18 owned or state-leased vehicle to provide transportation between the
19 residence of the employee and the assigned place of employment and
20 between the residence and any location other than the assigned place
21 of employment to which the employee travels in the performance of
22 the official duty of the employee.

23 5. The Director, department heads, emergency responders and
24 other essential employees of the Department of Corrections, as

1 authorized by the Director, may be permitted to use a state-owned or
2 state-leased vehicle to provide transportation between the residence
3 of the employee and the assigned place of employment and between the
4 residence and any location other than the assigned place of
5 employment to which the employee travels in the performance of the
6 official duty of the employee.

7 6. Designated ~~Examiner Auditors~~ examiner auditors, Designated
8 Examiner Supervisors, Commercial Driver License Examiners,
9 Commercial Driver License Auditors, Commercial Driver License
10 Supervisors, and Driver License Supervisors, as an employee of
11 Service Oklahoma may be permitted, as determined by the Director of
12 Service Oklahoma, to use a state-owned or state-leased vehicle to
13 provide transportation between the residence of the employee and the
14 assigned place of employment and between the residence and any
15 location other than the assigned place.

16 7. The Attorney General, division heads, emergency responders,
17 agents, assistant attorneys general, and other essential employees
18 of the Office of the Attorney General, as authorized by the Attorney
19 General, may be permitted to use a state-owned or state-leased
20 vehicle to provide transportation between the residence of the
21 employee and the assigned place of employment and between the
22 residence and any location other than the assigned place of
23 employment to which the employee travels in the performance of the
24 official duty of the employee.

1 8. Commissioners, division heads, emergency responders, and
2 field inspectors working assigned areas and not stationed at a
3 central office as authorized by the Oklahoma Corporation Commission,
4 may be permitted to use a state-owned or state-leased vehicle to
5 provide transportation between the residence of the
6 employee and the assigned place of employment and between the
7 residence and any location other than the assigned place of
8 employment to which the employee travels in the performance of the
9 official duty of the employee.

10 C. The principal administrator of the state agency with which
11 the employee is employed shall so designate the status of the
12 employee in writing or provide a copy of the temporary authorization
13 to the Governor, the President Pro Tempore of the Senate, and the
14 Speaker of the House of Representatives. Such employee status
15 report shall also be provided to the State Fleet Manager of the
16 Division of Fleet Management if the motor vehicle for emergency use
17 is provided by said Division.

18 SECTION 2. This act shall become effective November 1, 2026.
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